

Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

June 25, 2023

Jennifer Herrera
VP Finance
Suarez-Jones

Dear Ms. Herrera:

This letter confirms the terms on which Suarez-Jones is retaining us for the executive messaging work we discussed, and it stands as our agreement once you sign it. It covers what we will do, who will do it, what it costs, and the terms we are both agreeing to. Please read it against the conversation we had. If a line here does not match what you expected, tell me before you sign it and not after. Executive messaging only works when the leader and the people drafting for that leader are saying the same thing, and getting that right starts with the two of us agreeing what this engagement is.

Scope of the Engagement

The work is executive messaging for Suarez-Jones: a clear, consistent voice for your senior leaders in the settings that carry weight, and the language behind it that holds up from one appearance to the next. We are not rewriting what your executives believe or how they run the business. We are making sure that what they already stand for reaches the people who matter, in words that do not shift each time they are repeated.

Our method is unglamorous and it works. We listen first: to your leaders at Suarez-Jones, to the people who prepare them, and to the audiences who already carry an impression we may need to sharpen or correct. We reduce what we hear to a small set of core messages, written down, because a message that lives only in the room drifts the moment it leaves it. From there we build the material that carries those messages, and we stay with you when the messages are tested in public. A short position that stays put is worth more to you than a long one you spend the next year correcting.

The Team

John Macias will run this engagement day to day and is the person to bring anything that matters to. He carries only a few clients at a time, on purpose, so the one in front of him gets his attention, and he is the one who turns a question you raise into a next step you can see. When you want something moved, start with him.

Amy Carter will handle the drafting and keep each claim checked against its source before it reaches you. She is careful by habit and asks the question others skip, which is exactly what you want in the person holding the language. Between the two of them you will always know what is drafted, what is still open, and what needs you.

I lead the firm and I read what goes out under our name. I will not be on every call, but I am reachable, and if this engagement is not going the way you expected, I would rather hear it from you early than find it out late.

Fees and Payment

Our fee for the engagement is \$102,000, set at the outset as a single figure rather than billed against hours. We work to a fixed fee so that our attention stays on the result, and so that the cost of a question never enters into whether you pick up the phone. We bill it in two equal parts: half as the work starts, and half once we reach the middle of the term. Approved out-of-pocket costs, such as travel to meet your leaders or the production of finished materials, are passed through at cost and listed line by line on each invoice. Invoices are due within thirty days.

Term and Termination

The engagement begins on July 5, 2023 and runs about five months, which is the basis on which we have planned it. Either of us may end it on fifteen days' written notice. If you end it, you owe the installments due to that date and the approved costs incurred, and nothing more. If we end it, which we would do only on reaching a point where we could not stand behind the work, we refund any fee already paid against work still undone.

Confidentiality

This work depends on discretion. We will treat your internal plans, your leaders' preparation, and the existence and content of this engagement as confidential, and we will use what you tell us about Suarez-Jones that is not already public only to do the work you have hired us for, and we keep it inside the small group on each side that has to have it. We ask the same of you for our methods and our materials. Where an announcement carries its own timing, we take our cue from you.

Limitation of Liability

We will do this work with the care and skill our profession expects. How an audience takes a message, and how a given day moves, are not things we govern, so we do not promise a particular outcome; too much of what decides it sits outside anyone's hands. Our total liability under this engagement, on any basis, is limited to the fees you actually pay us for it, and neither of us is liable to the other for indirect or consequential loss. Nothing here limits liability for fraud or willful misconduct, nor should it.

Governing Law

This letter is the whole of our agreement on this engagement and replaces anything discussed or drafted before it. It is governed by the law of the state in which the firm keeps its principal office, and any dispute we cannot resolve between us goes to the courts sitting there, whose jurisdiction we each accept. Any change to these terms takes effect only in writing signed by both of us.

Acceptance

If this reflects our agreement, please sign below and return a copy to me. John Macias will follow up within the week to schedule the kickoff and to settle the first pieces of work, and Amy Carter will be in touch about the material she needs from your side. We are glad Suarez-Jones chose us for this, and we intend to be worth the choice.

Sincerely,

Julie Hill

Managing Partner
Date: June 25, 2023

Jennifer Herrera

VP Finance, Suarez-Jones
Date: June 25, 2023